SIMBARASHE ZINDOGA
versus
PETER MAGEJO
and
MINISTER OF LANDS, AGRICULTURE, WATER, CLIMATE AND RURAL RESETTLEMENT

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE: 13, 14 and 28 March 2025

Summons commencing action

A Matarurutso, for the plaintiff
S Chihombe, for the 1st defendant

MAMBARA J:

1. Introduction

This is a summons-based action wherein the plaintiff, Mr. Simbarashe Zindoga ("the plaintiff"), seeks an order for the eviction of the first defendant, Mr. Peter Magejo ("the first defendant"), from a portion of Farm No. 4 Chigwell Estate, Chegutu ("the Farm"). Additionally, the plaintiff prays for the setting aside of certain affidavits which allegedly surrendered or ceded sixty (60) hectares of the Farm to the first defendant. The plaintiff's principal contention is that, at the time he executed those affidavits, he was suffering from mental illness and lacked the capacity to comprehend the nature of the transaction, or that the first defendant procured his signature through undue influence. Consequently, the plaintiff denies having made any valid transfer or donation of the land.

2. Background

The Farm in dispute is State land, acquired under the Land Reform and Resettlement Programme. The plaintiff relies on a valid offer letter dated 24 May 2013, issued by the second defendant, the Minister of Lands, Agriculture, Water, Climate and Rural Resettlement ("the Ministry"). Under this offer letter, the plaintiff occupies the entire 129 hectares of the Farm. The plaintiff alleges that the first defendant's occupation of 60 hectares is unlawful, as the first

defendant neither possesses a separate offer letter nor can he claim title or authority from the Ministry.

3. Procedural Posture

Before this Court, the Plaintiff pleads that he originally approached the Chegutu Magistrates' Court seeking an eviction order. That court declined jurisdiction prompting the present action. The plaintiff's claim is straightforward: he insists that no lawful cession of any portion of the Farm occurred, particularly in light of his compromised mental state. He therefore prays for an eviction order, as well as a declaration invalidating any affidavits purporting to transfer or surrender the land.

By contrast, the first defendant pleads that the plaintiff voluntarily relinquished his rights over 60 hectares in 2015, surrendering that portion to the Ministry for reallocation. According to the first defendant, the District Lands Committee approved the reallocation in his favour, and he has occupied the land lawfully until the plaintiff changed his mind. He denies that the plaintiff was mentally incapacitated. Further, he contends that if the plaintiff genuinely wishes him gone, the Ministry should be the entity to evict, given that all farmland belongs to the State.

4. Issues for Determination

At the Pre-Trial Conference, the following issues were identified for resolution:

4.1. Whether the plaintiff validly surrendered 60 hectares of Farm No. 4 Chigwell Estate in favour of the first defendant;

4.2. Whether the affidavits purportedly effecting that surrender were validly executed, in light of the plaintiff's alleged mental incapacity and undue influence;

4.3. Whether the plaintiff, as the holder of an unamended offer letter, is entitled to evict the first defendant from any portion of the Farm.

5. Evidence Led

Plaintiff's Testimony

5.1. The plaintiff gave a detailed account of his allocation of the Farm. He stated that in 2013, the Ministry issued him an offer letter confirming his right to occupy 129 hectares. He testified that he satisfied the development obligations placed on offer letter holders. Around the same time, he began experiencing mental health challenges and was diagnosed with a psychotic condition.

Medical cards and reports introduced into evidence corroborated that he was prescribed medication.

5.2. According to the plaintiff, the first defendant, a prominent overseer within the Apostolic Faith Mission (AFM) in Chegutu, came into his life through the plaintiff's wife. The plaintiff trusted the first defendant's spiritual counsel. The plaintiff maintained that he ceased taking medication upon the first defendant's insistence that prayer alone would cure him. This, he claimed, led to a severe relapse, during which time he allegedly signed affidavits ceding 60 hectares to the first defendant without full comprehension of the consequences.

5.3. Once relatives intervened and restored him to medication, the plaintiff realized that affidavits existed suggesting he had donated or surrendered 60 hectares. He promptly repudiated those affidavits, deposing to another affidavit in or around August 2020, served on both the Ministry and the first defendant. Throughout his testimony, the plaintiff remained adamant that he never knowingly parted with any part of his land.

Testimony of Plaintiff's Wife

5.4. The plaintiff's wife, Mrs. Tambudzai Zindoga, corroborated his version. She recalled repeated prayer sessions and gatherings led by the first defendant, during which the plaintiff's reliance on spiritual intervention supplanted his medical regimen. She also recounted signing certain documents at the urging of the first defendant, but never in a formal environment before a commissioner of oaths. She emphasized her husband's deteriorating mental condition at the time.

Neighbour's Evidence

5.5. A neighbouring farmer, Mr. Tendai Nyandoro, testified that both he and the plaintiff received offer letters in 2013. He confirmed the plaintiff's mental health struggles after ceasing medication. Although unaware of the specific details between the plaintiff and the first defendant, he indicated that the Ministry never announced any reallocation of the plaintiff's farm.

6. First Defendant's Case

6.1. The first defendant maintained that the Plaintiff voluntarily decided to downsize from 129 to 69 hectares, surrendering the remainder for the first defendant's benefit. He denied any spiritual manipulation or instructions to

discontinue medication. He insisted the plaintiff's mental health was not so deteriorated as to invalidate legal acts. The first defendant also noted that he had not yet received a formal offer letter but believed the District Lands Committee had endorsed his occupation.

6.2. Under cross-examination, however, the first defendant admitted that no documentary proof exists confirming the Ministry's acceptance of the alleged surrender. He also could not clarify why the affidavits referred to him as the plaintiff's "brother" or "manager," except to speculate that the plaintiff must have inserted those details on his own.

7. Ministry's Position

7.1. The second defendant, the Ministry, participated minimally, providing a letter confirming the plaintiff's 2013 offer letter remains valid for the entire 129 hectares. It reported no record of a partial surrender or new offer in the first defendant's name. The Ministry further affirmed that a valid offer letter holder could lawfully seek eviction of any unauthorized occupier.

8. Legal Framework

Validity of Surrender

8.1. Under Zimbabwe's land reform laws, including the Agricultural Land Settlement Act [*Chapter 20:01*] and the Gazetted Lands (Consequential Provisions) Act [*Chapter 20:28*], beneficiaries of acquired land receive the right to occupy and utilize it under specific conditions. Typically, an offer letter bars cession, assignment, or subletting of those rights without the Minister's written authorization.

8.2. Any partial surrender must be accompanied by official documentation, usually in the form of a new or amended offer letter. The Supreme Court has emphasized in decisions such as *Commercial Farmers' Union v Minister of Lands & Others* SC 31/10 that unapproved private arrangements cannot override the requirement for ministerial consent.

Mental Capacity and Undue Influence

8.3. The plaintiff relies on common-law principles, underscored by cases like *Chetty v Naidoo* 1974 (3) SA 13 (A), holding that an individual suffering from mental incapacity cannot be bound by agreements executed in that state. Where undue

influence is alleged, the claimant must show that the other party exploited a relationship of trust or authority to overbear the claimant's free will.

8.4. Here, the plaintiff's vulnerability, his discontinuation of medication, and the first defendant's role as a spiritual authority collectively suggest an environment conducive to undue influence. The discrepancies in the affidavits—such as references to the first defendant as a relative—raise further doubt about the documents' integrity.

Right of an Offer Letter Holder to Evict

8.5. The first defendant argues that only the Ministry, as owner of the land, may evict him. This issue was resolved as far back as 2010 in the case of *Commercial Farmers Union and Others* v *The Minister of Lands and Rural Resettlement and Others* SC 31/10. This seminal judgment was cited by CHIWESHE JP (as he was then) in *McGregor* v *Saburi and Others* 2011 (1) ZLR 262 (H) where he wrote:

> "The Supreme Court, in the case of *Commercial Farmers Union* v *Minister of Lands and Rural Resettlement and Others* SC 31/10, has dealt with virtually all legal issues pertaining to land in this country. This landmark judgment provides clear direction to this court with regards to the interpretation of various land laws and the constitutional issues raised in connection with the land reform programme in Zimbabwe"

8.6. The issue was revisited and once again restated in the McGregor judgment *supra.* The main take- away from the Commercial Farmers' Union judgment that is relevant to the matter at hand is the following:

i) A permit, an offer letter and a land resettlement lease are valid legal documents when issued by the acquiring authority in terms of s2 of the Act and s8 of the Land Settlement Act. The holder of such permit, offer letter or land settlement lease has the legal right to occupy and use the land allocated to him or her in terms of the permit, offer letter or land settlement lease.

ii) The holders of an offer letter, permit or land settlement lease are not entitled as a matter of law to self-help. They should seek to enforce their right to occupation through the courts. Where therefore the holder of an offer letter, permit or land resettlement lease has resorted to self-help and the former owner or occupier has resisted, both parties are acting outside the law.

8.7. The plaintiff has indeed acted within the confines of the law by approaching this court for the eviction of the first defendant. He has proved and demonstrated beyond any reasonable doubt that he is a holder of a valid offer letter. He has proved that he is in occupation of the land that the Government allocated to him. The first defendant has testified that he is in occupation of the part of the land that was offered to the plaintiff. His main defence as appeared during his oral evidence is that the plaintiff has no right to evict him. According to the first defendant's understanding, only the Ministry of Lands could evict him.

8.8. This is clearly a fallacious and misinformed position. In the *McGregor case supra*, CHIWESHE JP (as he was then), after such an argument was advanced, wrote, "The applicant has argued that an offer letter does not give authority to evict a person already in occupation. Nothing could be further from the truth. The holder of an offer letter has authority granted by the owner of the land, that is the State, to occupy and utilize the land in question. He has a right and a legitimate interest to access the property. That right is enforceable against any other person who may seek to deprive him of it or frustrate his enjoyment of the same. The holder of an offer letter is perfectly entitled to seek an eviction order against persons who may illegally be in occupation of such property. He may not however take the law into his own hands and act without a court order. The offer letter confers upon its holder the "*locus standi*" to approach the courts for the appropriate relief, contrary to the applicant's assertions. In my view the right to evict illegal occupiers is not limited exclusively to the State or the responsible Minister as the applicant would have us believe; it extends to the beneficiaries as well."

9. <u>Analysis</u>

9.1. From the totality of evidence, the plaintiff never completed a valid surrender process. The Ministry indicated it had no record of such action. Nor did the plaintiff voluntarily or knowingly relinquish rights in the face of a severe mental disorder. The alleged affidavits are suspect both in origin and content, and the first defendant's explanation that the District Lands Committee somehow authorized him remains uncorroborated by official paperwork.

9.2. Even assuming the plaintiff initially tried to downsize, the law demands more than private affidavits to accomplish a reallocation of State land. Absent written

ministerial approval and the issuance of a new or amended offer letter, no legal cession occurred. Therefore, the plaintiff continues as the sole lawful occupant under the existing offer letter, entitling him to secure an eviction of any party lacking a superior right.

10. Unlawful Occupation

10.1. The first defendant's presence on the disputed 60 hectares is thus unauthorized. He does not hold a separate offer letter or lease from the Ministry. The plaintiff's later affidavit of revocation (dated around August 2020) further nullifies any perception that the plaintiff wished to donate or surrender the land.

10.2. Because an offer letter holder acts with delegated authority from the State, the plaintiff may lawfully seek an eviction order in this Court. The first defendant's reliance on an alleged District Lands Committee recommendation falls short of conferring legal rights.

11. Costs

11.1. The plaintiff seeks costs on a higher scale, arguing that the first defendant abused a position of trust. While these circumstances indeed suggest manipulative conduct, punitive costs require a clear demonstration of egregiousness. The Court finds that ordinary party-and-party costs appropriately address the plaintiff's expenses.

12. Findings and Disposition

12.1. On a balance of probabilities, the Court concludes:

- The plaintiff remains the lawful holder of an offer letter for the entirety of Farm No. 4 Chigwell Estate, measuring 129 hectares.
- No valid surrender or cession of 60 hectares took place, in the absence of ministerial approval and genuine free consent by the plaintiff.
- The affidavits relied upon by the first defendant were obtained under circumstances that compromised the plaintiff's mental capacity and did not comply with legal formalities.
- The first defendant holds no official instrument conferring lawful occupation; hence, his continued presence on the Farm is unlawful.

12.2. Consequently, the plaintiff is entitled to an eviction order against the first defendant and to a declaration nullifying any documents purporting to cede or donate part of the Farm.

ORDER

It is accordingly ordered that:

1. Any and all affidavits, or similar documents, purporting to transfer, donate, or otherwise cede sixty (60) hectares of Farm No. 4 Chigwell Estate, Chegutu, to the first defendant be and are hereby declared null, void, and of no force or effect.
2. The first defendant, and all those claiming occupation through him, shall vacate the portion of Farm No. 4 Chigwell Estate they currently occupy within thirty (30) days of service of this Order, failing which the Sheriff, or his lawful deputy, is authorized to effect eviction.
3. The plaintiff's original offer letter dated 24 May 2013 remains valid, vesting him with lawful possession and occupation rights over the entire 129 hectares of Farm No. 4 Chigwell Estate, Chegutu.
4. The first defendant shall pay the plaintiff's costs of suit on the ordinary scale.

MAMBARA J: …….

Saunyama Dondo, plaintiff's legal practitioners
Pundu and Company, defendant's legal practitioners